Mohit Jain vs The State Through Nct Of Delhi on 18 July, 2024

Author: Manoj Kumar Ohri

Bench: Manoj Kumar Ohri

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* IN THE HIGH COURT OF DELHI AT NEW
+ BAIL APPLN. 2237/2024
MOHIT JAIN

THE STATE THROUGH NCT OF DELHI
Through: Mr. Aashneet

CORAM:
HON'BLE MR. JUSTICE MANOJ KUMAR OH

% 18.07.2024

1. The present application has been filed by the petitioner/applicant seeking anticipatory bail in FIR No. 17/2024 registered under Sections 419/420/384/170/120B IPC at P.S. Cyber Police Station, Delhi.

2. Learned Senior Counsel for the applicant submits that the applicant has been falsely implicated in the present matter. It is submitted that the phone numbers which have been used to defraud the complainant in the present matter neither belong to the present applicant nor to anyone in his proximity. Learned counsel lastly submits that the present applicant is not a beneficiary from the alleged fraud since there has been no transfer of money in his personal account or in any account linked to his business.

3. Learned APP for State has relied upon the Status Report which has come on record. It is submitted that the present matter involves fraud of an This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 23/07/2024 at 20:57:43 amount of Rs 62 lacs which has been illegitimately extracted from the complainant by persons impersonating as police officials. The present applicant came to be arrested based on the disclosure statements of the co- accused persons namely, Anurag and Mukesh who have stated that they were working for the present applicant, who was in fact running a syndicate of fake accounts along with

his associates/co-accused Ashish and Keshav. It is submitted that during investigation, it has come on record that accused Deepak Goyal in connivance with the present applicant and his associates, has opened 25 directorship firms running 63 current bank accounts against which 137 cases have been registered in different states, involving fraud of about Rs. 22 crores. Learned APP has referred to the statement of the landlord of the said office of the applicant at VDS-79/G-4, Sector 63, Noida, UP and has stated that the rent agreement of the said premises was executed in favour of co-accused Ashish, who was jointly operating the office with the present applicant and Keshav. Learned APP has referred to Whatsapp chats between accused Deepak Goyal and the present applicant, involving credentials and details of the aforementioned bank accounts. Learned APP has also relied upon CDR connectivity between the applicant and the accused persons. It is informed that notice u/s 41A was also issued to the present applicant, however the applicant has failed to join investigation and has allegedly absconded to Nepal. It is lastly submitted that the applicant is also involved in two other FIRs of similar nature.

4. Considering the role attributed to the present applicant and after perusing the various relied upon documents which have come on record, this Court is of the opinion that the custodial interrogation of the applicant is necessary to reach the truth of the matter and that grant of anticipatory bail This is a digitally signed order.

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5. Accordingly, the bail application of the applicant is dismissed and disposed of.

MANOJ KUMAR OHRI, J JULY 18, 2024 na This is a digitally signed order.

The authenticity of the order can be re-verified from Delhi High Court Order Portal by scanning the QR code shown above. The Order is downloaded from the DHC Server on 23/07/2024 at 20:57:44